

FR.NO. 2017603/2025

BEFORE THE HON'BLE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

PRESENTATION FORM

W.P.No. 201859 /2025

Serial No. _____

VIJAYAPURA District

Advocate:

Between

Rakshith K S,
Bhavani Complex, 1st Floor,
New jewaragi Road,
Kalaburagi - 586201

**KRISHNA BHAGYA
JALA NIGAM LTD.**

Mob: 8618073619

AND

Email ID: rakshithkslaw@gmail.com

SLAO & ORS.

Sl. No.	Description of Papers Presented	Court Fee Affixed on the Paper
01.	On the Memo of petition	
02.	On the Memo of Appeal	
03.	On Vakalath	
04.	On Certified Copies	
05.	On I.A. No. _____ for _____	
06.	On Process Fee	
07.		
08.		
09.		
10.		

Number of Copies Furnished

Other Side Served

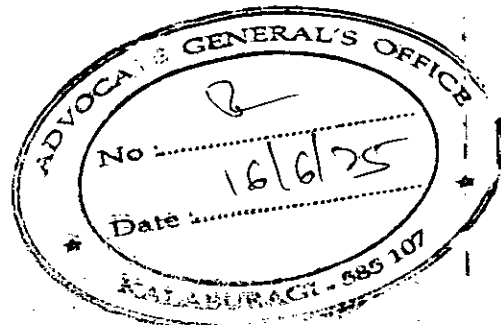
Presented by

Advocate for Petitioner/ Complainant
Appellant / Respondent

Received Paper

Place: KALABURAGI

Date:



IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

W. P. NO. /2025

BETWEEN:

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER

AND

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS

I N D E X

SL.NO.	PARTICULARS	PAGE NO.
1.	Synopsis	1-3
2.	Memorandum of writ petition under article 227 of Constitution of India	4-26
3.	Verifying affidavit	27
4.	Annexure - 'A' -Copy of the impugned Judgment	28-42
5.	Annexure - 'B' - Copy of the order No. RD04 LAC 2024 (E-1351620) dated 07/03/2024	43
6.	Vakalath	44-45
7.	I.A. for dispensation	46
8.	Affidavit / Memo of Facts	47-48

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

IN THE HIGH COURT OF KARNATAKA**KALABURAGI BENCH****W. P. NO. _____ /2025****BETWEEN:**

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER**AND**

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS**SYNOPSIS**

Date	Event
19.08.1994	Krishna Bhagya Jala Nigam Ltd. (KBJNL) incorporated under the Companies Act, 1956 for implementation of the Upper Krishna Project (UKP) in the State of Karnataka.
18.03.2016	SLAO awarded Rs.72,000/- for land acquired from Respondents / Claimants.
29.02.2024	District Judge exponentially enhanced compensation from Rs.72,000/- to Rs.10,32,500/- per acre (i.e, 14.34 times the original or 1,334% increase) vide ANNEXURE-A wherein the Petitioner Nigam who is the

	beneficiary and necessary party was not made a party.
07.03.2024	State Government mandated KBJNL to be impleaded in all UKP-related proceedings vide ANNEXURE-B
May 2025	KBJNL discovered irregularities in compensation enhancement when it began securing documents of the case.

BRIEF FACTS

Krishna Bhagya Jala Nigam Ltd. (KBJNL) was incorporated on 19th August 1994 under the Companies Act, 1956, as a government-owned entity responsible for implementing the Upper Krishna Project (UKP). On 18.03.2016, the Special Land Acquisition Officer (SLAO) awarded Rs.72,000/- as compensation for land acquired from Respondents / Claimants.

Subsequently, on 29.02.2024, the District Judge exponentially enhanced the compensation from Rs.72,000/- to Rs.10,32,500/- per acre (i.e, 14.34 times the original or 1,334% increase) On 7th. March 2024, the State Government issued an

order mandating KBJNL to be impleaded as a necessary party in all UKP-related proceedings. In May 2025, KBJNL discovered irregularities in the compensation enhancement process and began securing case copies to address the issue.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

IN THE HIGH COURT OF KARNATAKA**KALABURAGI BENCH****W. P. NO. _____/2025****BETWEEN:****KRISHNA BHAGYA JALA NIGAM LTD.**

represented by its
MANAGING DIRECTOR,
Upper Krishna Project, Almatti,
Tq: Nidagundi, Vijayapur Dist.

...PETITIONER**AND****1. THE SPECIAL LAND ACQUISITION OFFICER,**

UKP, Alamatti,
Tq: B.Bagewadi
VIJAYAPURA - 586201

...RESPONDENT NO.1**(RESPONDENT NO.1 IN L.A.C. NO.1691/2019)****2. THE SPECIAL DEPUTY COMMISSIONER,**

Rehabilitation and Resettlement
Land Acquisition Division,
Navanagar,
Bagalkot - 587103

...RESPONDENT NO.2**(RESPONDENT NO.2 IN L.A.C. NO.1691/2019)****3. BASAPPA**

S/o Sangappa Hokrani
Age: Major
R/at: Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura
Dist.Vijayapura - 586212

...RESPONDENT NO.3**(CLAIMANT NO.1 IN L.A.C. NO.1691/2019)**

4. YALLAPPA

S/o Sangappa Hokrani
Age: Major
R/at: Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura
Dist.Vijayapura - 586212

...RESPONDENT NO.3
(CLAIMANT NO.2 IN L.A.C. NO.1691/2019)

5. BASALINGAVVA

W/o Sangappa Hokrani
Age: Major
R/at: Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura
Dist.Vijayapura - 586212

...RESPONDENT NO.3
(CLAIMANT NO.3 IN L.A.C. NO.1691/2019)

6. NILAVVA

W/o Shankrappa Hokrani
Age: Major
R/at: Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura
Dist.Vijayapura - 586212

...RESPONDENT NO.3
(CLAIMANT NO.4 IN L.A.C. NO.1691/2019)

7. MAHADEVI

W/o Shekappa Hokrani
Age: Major
R/at: Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura
Dist.Vijayapura - 586212

...RESPONDENT NO.3
(CLAIMANT NO.5 IN L.A.C. NO.1691/2019)

MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
& 227 OF THE CONSTITUTION OF INDIA

The Petitioner respectfully submits as under:

This Writ Petition is filed praying for issuance of a writ of Certiorari and quashing the impugned Judgment dated 29.02.2024 in L.A.C.No.1691/2019 (**ANNEXURE-A**) passed by the Hon'ble 1st Addl. District and Sessions Judge, & The Land Acquisition Rehabilitation and Resettlement Authority, Vijayapura. Copy of the Impugned Judgments is produced and marked as **ANNEXURE-A**. Apart from seeking the aforesaid reliefs, the Petitioner has also sought for certain other reliefs which are ancillary to the main relief.

BRIEF FACTS OF THE CASE

The Petitioner submits that:

- 01.** Krishna Bhagya Jala Nigam Ltd (KBJNL) was incorporated on 19th August 1994 under the Companies Act, 1956 as a Company wholly owned by the Government of Karnataka specifically for implementation of the Upper Krishna Project (UKP) in the State of Karnataka. The Company is statutorily responsible for planning, investigation, estimation, execution, operation and maintenance of all irrigation projects coming

under the UKP and is also responsible to obtain Government of India's clearance and execute the UKP. The Company is further entrusted with the responsibility of Rehabilitation and Resettlement of the people affected by the Project. It is thus evident that the Petitioner KBJNL is the designated beneficiary entity for whose benefit the Special Land Acquisition Officers are acquiring lands under the Upper Krishna Project, and all such acquired lands are ultimately transferred to and utilized by the Petitioner KBJNL for the implementation of the irrigation project. The Petitioner KBJNL, being the statutory beneficiary of all land acquisitions undertaken for the Upper Krishna Project, has a direct, substantial and legally enforceable interest in all compensation proceedings related to such acquisitions, thereby making it an indispensable party to any reference proceedings seeking enhancement of compensation for lands acquired for the UKP.

- 02.** Respondent No.1 / SLAO acquired the land owned by Respondents No.3 to 7 bearing its Sy.No.84/1, measuring 10 Guntas, situated at Kawadimatti Village, Vijayapura under the award LAQ:SR:No.26/2013 -14 dated 18.03.2016 and handed

) over the said Land to the Petitioner herein for implementation of UKP-III.

03. Respondent No.1 / SLAO fixed the market value at Rs.72,000/-per acre in both the cases.

04. That the Respondent No.3 to 7 not satisfied by the award, filed Reference petitions U/S 64 of RFCTLARR Act, 2013 for enhancement of compensation challenged the same vide L.A.C.No. 1691/2019 before the Hon'ble 1st Addl. District and Sessions Judge, & The Land Acquisition Rehabilitation And Resettlement Authority, Vijayapura.

05. Although the Petitioner is responsible for implementing the project and for paying the awarded or enhanced compensation to the landowners/claimants, the Petitioner was not made a party to the proceedings.

06. Learned District Judge enhanced the Compensation from Rs.72,000/- to Rs.10,32,500/- per acre (i.e, 14.34 times the original or 1,334% increase) vide **ANNEXURE-A** without following the procedure laid down in the RFCTLARR Act, 2013.

07. The Respondents / Claimants in this case as well as the other Claimants in various other cases managed to keep the Petitioner Nigam herein away from these matters and obtained exponential award amounts in the hands of the Reference Courts by way of precedence set by the same court and thus no case was allowed to be tried on merits.
08. The Petitioner Nigam when smelt the foul play, started to secure the copies by applying in the concerned courts as well as via online in the month of May 2025. That is when the Petitioner Nigam got to know about these irregularities and thereby the Petitioner has approached this Hon'ble Court.
09. Since the Petitioner Nigam is the beneficiary and necessary party but it was never made a party and not even notice was served in every case, the Petitioner Nigam could not present its case on merits.
10. It is further submitted that the State Government vide order No. RD04 LAC 2024 (E-1351620) dated 07/03/2024 has specifically mandated that KBJNL should be impleaded as a necessary party in every UKP-related proceeding. Copy of the said order is produced and marked as **ANNEXURE-B.**

11. This mandate itself recognizes the necessity of the Petitioner's participation and validates the present Writ Petition despite any hurdle.
12. Only after all the above-mentioned developments, the Petitioner Nigam without any other option left, is standing before this Hon'ble Court.
13. The Petitioner has not acquiesced to or accepted the impugned judgment in any manner. The moment the Petitioner became aware of the judgment and its implications, it has promptly approached this Hon'ble Court, demonstrating its bona fide intention to challenge the same.
14. It is submitted that the enhancement of award amount made by the Reference court in the absence of Petitioner Nigam severely prejudices its legal and financial interests, as it is the entity ultimately liable to bear the financial burden of such enhancement without having been afforded an opportunity to contest the same.
15. The ex-parte enhancement of the award amount without hearing the Petitioner Nigam creates serious impediments to

the completion of the Upper Krishna Project Stage -III since it disrupts the approved financial planning and budgetary allocations for the Upper Krishna Project Stage -III, potentially causing cost overruns and project delays.

16. Further the precedent of ex-parte enhancement is encouraging similar claims in other land acquisition matters related to the project, exponentially increasing the financial burden and creating uncertainty in project execution.

17. Further the Petitioner Nigam will be constrained to seek fresh administrative and financial approvals for the enhanced award amounts, creating procedural delays that directly impact the project's critical path activities.

18. The Upper Krishna Project Stage -III is a vital irrigation and drinking water project serving multiple districts and benefiting lakhs of farmers and citizens. The impediments created by ex-parte enhancement of award amount adversely affect irrigation schedules of dependent agricultural areas, affecting crop patterns, farmer livelihoods and drinking water component of numerous towns and villages.

- 19.** The Petitioner Nigam operates under statutory mandates and project timelines approved by various authorities including Central Water Commission Clearances, State Government Commitments, and External funding agencies and financial institutions have disbursement schedules tied to project milestones, which get unexpected financial burdens arising from ex-parte proceedings.
- 20.** The Petitioner Nigam maintains comprehensive data on land values, market trends, and reasonable compensation benchmarks across the project area, which remained unavailable to the trial court since the Petitioner Nigam was not made as a party to the proceedings.
- 21.** It is submitted that The ex-parte enhancement of award amount violates established principles of fiscal responsibility and prudent financial management since the Petitioner Nigam is a custodian of public funds and has statutory obligations to ensure judicious utilization of resources for maximum public benefit.
- 22.** The Petitioner Nigam is the designated beneficiary of all land acquisitions undertaken for irrigation projects in the state, with

legal title and beneficial interest in the acquired lands vesting in the corporation and hence it is legally accountable for all financial transactions, expenditures, and compensation payments related to land acquisition for its projects, making it an indispensable party in any proceedings affecting such financial obligations.

23. The Petitioner Nigam has fundamental rights to legal representation and participation in all proceedings that affect its interests, rights that were violated by the ex-parte proceedings.

24. The reference court was not informed about the funding arrangements, sources of compensation payment, and the financial chain connecting the SLAO's disbursement authority to The Petitioner Nigam's financial resources. The Court was not presented with the broader project context, public interest considerations, and the impact of compensation decisions on project viability and completion timelines since The Petitioner Nigam was not heard.

25. The proceedings became one-sided with only the claimants' perspective being adequately presented, while the complete

) defense case involving technical and financial considerations remained unrepresented.

26. The flawed proceedings have created adverse precedent that encourages similar incomplete presentations in other related cases, multiplying the prejudicial effects.

27. Hence this Writ Petition.

28. The petitioner has no other alternative and efficacious remedy except to approach this Hon'ble court by way of filing this Writ Petition.

29. The Petitioner has not questioned the validity of any State or central enactment in this Writ Petition.

30. The Petitioner has not filed any writ nor commenced any proceedings before any court of law or authority and no proceedings is pending before any court of law or authority in respect of the relief's claimed in this Writ Petition.

31. Aggrieved by Impugned Judgment at **ANNEXURE-A** the petitioner has filed this Writ Petition on the following amongst

other grounds to be urged at the time of hearing of this Writ Petition.

GROUND

32. It is submitted that the Petitioner is a 'person interested' as defined under Section 3 (x) of the New Land Acquisition Act, 2013 and it reads as follows:

"Section 3(x): "person interested" means—

(i) all persons claiming an interest in compensation to be made on account of the acquisition of land under this Act;

(ii) the Scheduled Tribes and other traditional forest dwellers, who have lost any forest rights recognized under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006. (2 of 2007);

(iii) a person interested in an easement affecting the land;

(iv) persons having tenancy rights under the relevant State laws including share-croppers by whatever name they may be called; and

(v) any person whose primary source of livelihood is likely to be adversely affected."

33. Therefore KBJNL being the beneficiary of the project for which the land has been acquired, is a 'Person Interested' as defined under Section 3 (x)(i) of the New Land Acquisition Act, 2013 as has been held by the Hon'ble Apex Court in a catena of Judgments.

34. Judgments and award are in contravention of the law laid down by the **Hon'ble Apex Court** in the case of ***Neyvely Lignite Corporation Ltd. vs Special Tahashildar (land Acquisition) Neyvely&Ors, reported in 1995 (1) SCC 221***, wherein it was held that the Beneficiary is a 'person interested' to determine just and proper compensation for an acquired land and is an aggrieved person and thus, a proper and necessary party under Order 1 rule 10 of CPC.

35. Section 66 of the New Land Acquisition Act, 2013 which is similar to Section 20 of the Old Act, contemplates that after the Authority/ Reference Court receives reference from the SLAO/collector, it shall issue notice to all 'persons interested' and reads as under:

Section 66: Service of notice by Authority. – The Authority shall thereupon cause a notice specifying the

day on which the Authority will proceed to determine the objection, and directing their appearance before the Authority on that day, to be served on the following persons, namely:

- a. the applicant;*
- b. **all persons interested in the objection,** except such (if any) of them as have consented without protest to receive payment of the compensation awarded; and*
- (c) if the objection is in regard to the area of the land or to the amount of the compensation, the Collector.*

Therefore, KBJNL being a 'person interested', is entitled to receive notice from the Reference Court and participate in the proceedings. The Reference Court has erred in not issuing the notice to the Petitioner and in not following the mandate of Section 66.

- 36.** Non-issuance of Notice to KBJNL by the District Court as contemplated under Section 20 of Land Acquisition Act, 1894 or under Section 66 of the New Land Acquisition Act, 2013, and

proceeding with the matter in the absence of the beneficiary-Respondent is in negation of fair and proper procedure and against the principles of natural Justice and is thus in violation of Article 14 of the Indian Constitution.

37. That the Hon'ble District Court failed to appreciate the evidence on record properly and erred in arriving at the conclusion which is contrary to law and has not considered the legal precedents applicable in this case, thereby rendering the Judgment erroneous and the findings of the Hon'ble District Court are perverse and not supported by substantial evidence.

38. Sec. 26 of the Act gives the mechanism to be adopted in determining the market value. Sec.26 reads as follows:

"26. Determination of market value of land by Collector.—(1) *The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—*

(a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or

(b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or

(c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in

Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value. average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

39. Though Respondent No.1 has followed the steps mentioned in Sec.26 of the Act in determining the market value of the land, the Learned District Judge has erroneously considered only three sale deeds and exorbitantly enhanced the market value.

40. It is submitted that the first respondent being the acquiring authority has initiated land acquisition proceedings for the purpose of formation of UKP project on behalf of the beneficiary and ultimately, beneficiary is entitled to take over the land acquired by the first respondent and form the project and the compensation too would be paid by the beneficiary party i.e. the Petitioner Nigam herein. Therefore, in the context, the beneficiary on whose behalf of the land is acquired is a proper and necessary party. Though the proceedings can be adjudicated in the absence of proper party, necessary party is that in whose absence, there could not be effective adjudication between parties. Therefore, the Petitioner Nigam which is the beneficiary is not only a proper party, but also necessary party.

41. The Hon'ble Supreme court in ***U.P. Awas Evam Vikas Parishad vs. Gyan Devi, (1995) 2 SCC 326 at page 343,***

has observed that in para 21 *"the law is well' settled that a necessary party is one made made effectively and a proper party is one without whom no order can be made effectively and a proper party is one in whose absence as effective order can be made but whose presence is necessary for a complete and final decision of the question involved in the proceedings"*.

The Hon'ble Supreme Court in has consistently held that where a party is necessary for the effective adjudication of a matter, proceedings conducted in its absence are liable to be set aside. The failure to join Krishna Bagya Jala Nigama Ltd. falls squarely within this principle.

42. The petitioner Krishna Bagya Jala Nigama Ltd. is the actual beneficiary of the land acquisition proceedings and is the statutory body responsible for payment of compensation to the claimants through the Special Land Acquisition Officer (SLAO). The failure to implead Krishna Bhagya Jala Nigama Ltd. as a respondent in the trial court proceedings constitutes a fatal defect rendering the entire proceedings null and void.

43. The trial court lacked inherent jurisdiction to adjudicate upon the matter and grant enhanced compensation in the absence

of Krishna Bhagya Jala Nigama Ltd., being the principal party liable to pay such compensation. The adjudication of compensation matters without the presence of the actual paying authority violates principles of natural justice and renders the judgment unenforceable.

44. The reference Court has to issue the notice to the Beneficiary when the compensation determined by the SLAO is challenged by the Claimant before the Reference Court since it is mandatory as per Section 20 of the Land Acquisition Act (Old Act) that, a notice has to be issued to the beneficiary.

45. The beneficiary of acquisition upon whom the burden to pay the compensation and enhanced compensation falls under the scheme of the law relating to acquisition of the land and therefore, consistent with the requirement of the principles of natural justice, such beneficiary has to be afforded an opportunity of hearing.

46. It is further submitted that in a proceeding seeking enhancement of compensation, if the land owner has not taken steps to implead beneficiary, then in such a case it is just and necessary that the Reference Court *Suo moto* impleads

beneficiary of acquisition which would avoid multiplicity of proceedings.

47. Learned District Judge in each case has observed that Collector has adopted the criteria mentioned in Sec.26(1)(b) of the RFCTLARR Act, 2013. Such being the case, the Learned District Judge has still enhanced the market value arbitrarily

48. Learned District Judge in each case has relied upon only 3 sale deeds produced by the Claimants and enhanced the market value which is contrary to the provisions of RFCTLARR Act, 2013 which clearly states that 50% of the sale deeds registered prior to 3 years from the date of preliminary notification needs to be considered in determining the market value of the acquired land.

49. Such being the case the Learned District Judge without going into the merits of the case blindly relied on a Judgment passed by it in I.A.C.No.489/2020 and exponentially enhanced the award amount vide Annexure-A impugned judgment.

GROUND FOR INTERIM RELIEF

Though the Petitioner Nigam herein is a Necessary Party, the Parties to the earlier proceedings have not made the Petitioner

Nigam as a party and obtained the impugned Judgment and the Respondent / Claimant is trying to get the attachment orders by filing execution proceedings. If the operation of the impugned Judgment and award is not stayed, the above petitioner Nigam will be put to great hardship. If the interim order as prayed for is granted, no prejudice or loss would be caused to the Respondent. On the other hand, if the interim order is not granted, the petitioner Nigam will be put to great loss and hardship which cannot be compensated in any manner. Hence the interim prayer.

PRAYER

WHEREFORE, the petitioner respectfully prays that this Hon'ble court may be pleased to:

- a) Issue a writ of Certiorari and quash the impugned Judgment dated 29.02.2024 in L.A.C.No.1691/2019 (**ANNEXURE-A**) passed by the Hon'ble 1st Addl. District and Sessions Judge, & The Land Acquisition Rehabilitation and Resettlement Authority, Vijayapura.
- b) Remand the matters to the trial court with specific direction to re-hear the matters afresh after mandatorily impleading the Petitioner Nigam as one of the Respondents and afford it full

, opportunity to participate in the proceedings, present its defense, adduce evidence, and make legal submissions;

2) Issue any other writ, order or direction as this Hon'ble Court deems fit and proper in the interest of Justice, Fairness and equity under the circumstances of this case.

INTERIM PRAYER

During the pendency of the above Writ Petition, the petitioner respectfully prays that this Hon'ble Court may kindly be pleased to stay the operation of the impugned judgment dated 29.02.2024 in L.A.C.No.1691/2019 (**ANNEXURE-A**) passed by the Hon'ble 1st Addl. District and Sessions Judge, & The Land Acquisition Rehabilitation and Resettlement Authority, Vijayapura in the interest of Justice & Equity.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

ADDRESS FOR SERVICE:

Rakshith K S, Advocate
Bhavani Complex, 1st Floor,
New jewaragi Road,
Kalaburagi - 586201
Mob: 8618073619
Email ID: rakshithkslaw@gmail.com

27

**IN THE HIGH COURT OF KARNATAKA, KALABURAGI BENCH,
KALABURAGI**

WP No.

/ 2025

BETWEEN

Krishna Bhagya Jala Nigam Limited

Petitioner

AND

The Special Land Acquisition Officer & Ors

Respondents

Verifying Affidavit

I, Ravikumar P., S/o. Late R. Puttasetty, Age: 51 Years, Occ: General Manager- Administration and Human Resources, Krishna Bhagya Jala Nigam Limited, 3rd Floor, PWD Office Annexe Building, K. R. Circle, Bengaluru - 560 001, today at Bengaluru, do hereby solemnly affirm & state on oath as follows.

1. I am the General Manager- Administration and Human Resources of the Petitioner - Company in the above case. I am the authorized representative of the Petitioner. I am well conversant with the facts of the case. Hence, I am swearing to the contents of this affidavit.

2. I submit that the averments made in Para Nos. 1 to of the accompanying writ petition are true and correct to the best of my knowledge, belief and information.

3. I submit that, the Annexure - A to are true copies of their respective originals.

PLACE : BENGALURU

DATE : 29 MAY 2025

Identified by me/

Advocate

DEPONENT

ರವಿಕುಮಾರ್ ಪಿ

ಕೆ.ಆ.ಸೀ. (ಆಯ್ಕೆ ಶ್ರೇಣಿ)

ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು - ಅಡಳಿತ

ಕ್ರೈಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ

ಪಿಡಬ್ಲ್ಯುಡಿ ಅಫೀಸ್ ಪೂರಕ ಕಟ್ಟಡ, 3ನೇ ಮಹಡಿ

ಕೆ.ಆರ್. ವೃತ್ತ, ಬೆಂಗಳೂರು-560 001

WORN TO BEFORE ME

P. ANURADHA, B.A., M.L., M.Phil.

ADVOCATE & NOTARY PUBLIC

1702, 'Akshaya Lakshmi Nilaya'

Block (Olden Plaza), Banashankari 6th Stage

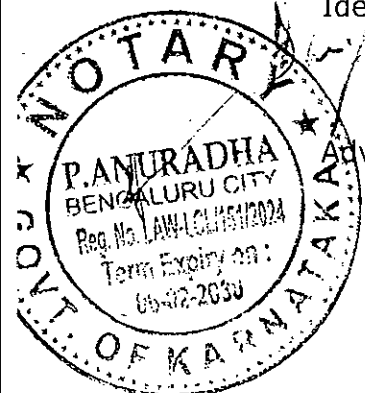
Hosur, Vidyanagar Post, Bangalore-560 001

Volume No. 1

1080

159
29/5/25

No. of CORRECTIONS



KAVP010064012019



Presented on : 21-10-2019

Registered on : 02-11-2019

Decided on : 29.02.2024

D M Y

Duration : 27 03 04

**IN THE COURT OF I ADDITIONAL DISTRICT JUDGE
AND LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY, VIJAYAPURA**

Present :**Sri SUBHASH SANKAD,****B.A., LL.M****I Additional District Judge,
Vijayapura.**Dated this the 29th day of February 2024**L.A.C.No.1691/2019****Claimants/Petitioners:**

1. Basappa S/o Sangappa Hokrani.
2. Yallappa S/o Sangappa Hokrani.
3. Basalingavva W/o Sangappa Hokrani
4. Nilavva W/o Shankrappa Harindral.
5. Mahadevi W/o Shekappa Kuntoji.

All are R/o Kawadimatti,
Tq: Muddebihal, Dist. Vijayapura.

(By Sri B.S.Karbantanal Advocate)

// Versus //

SUBHASH
BASAVANNEPPA
SANKAD

Digitally signed
by SUBHASH
BASAVANNEPPA
SANKAD
Date: 2024.03.01
15:42:46 +0530

29

Respondents:

1. The Special Land Acquisition Officer, UKP, Almatti, Tq: B.Bagewadi.
2. The Special Deputy Commissioner, Rehabilitation and Resettlement Land Acquisition Division, Navanagar, Bagalkot.

(By Special Government Counsel)

J U D G M E N T

This Reference petition is filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (hereinafter referred as 'Act'), being aggrieved by the award passed in LAQ:SR:No.26/2013-14 dated 18.03.2016 for enhancement of compensation.

2. The brief facts of the case are as under:

The petitioners herein are the owner of the acquired land bearing Sy.No.84/1 measuring 10 guntas situated at Kawadimatti village. The said land has been acquired by the respondents for the purpose of construction of Chimmalagi Lift Irrigation Project. The respondent has awarded the compensation of Rs.72,000/- per acre. It is stated that while passing the award and fixing the compensation the

respondents have not considered all the factors in a proper perspective. The petitioners herein has not been given proper opportunity to put-forth his claim before him. Without following proper procedure the respondents have acquired the land and awarded the less compensation.

3. The petitioners have further contended that they were growing various crops due to the acquisition of the land by the respondent's authority they have suffered huge loss. By considering all these aspects into consideration the claimants has prayed to enhance the compensation as prayed for.

4. In response to the notice, the respondents have appeared through learned Special Government Counsel and filed objections. It is stated in the objections that the Reference Petition is not filed within time. Further the respondents have fixed the market value of the land and passed the award, by taking into consideration all the factors, according to law. The respondents while fixing the market value has considered all the parameters. The petitioner has not sustained any loss due to the acquisition of the

land. Instead the petitioner is benefitted as their land became irrigated due to the construction of the canal. The award passed by the respondents are just and proper and the same does not require enhancement. With this they have sought for rejection of the Reference Petition and prayed to confirm the award passed by the respondent.

5. To support the claim, the petitioner No.1 has been examined as PW-1 and produced documents as per Ex.P1 to 8. In spite of providing sufficient opportunity the respondents have not lead evidence. However, respondent got marked notices and award as Exs.R1 & 2 with consent.

6. I have heard both sides. Learned counsel for the petitioners has filed memo along-with copy of Judgment in LAC No.1690/2019 and prays to award the same compensation to the petitioners herein also. Now, points that arise for consideration are as under:

- 1) *Whether the claimants prove that they have filed Reference petition within stipulated time?*
- 2) *Whether the claimants prove that the SLAO while passing the award has not fixed the fair compensation?*

3) *Whether the Reference petition filed by the claimants deserve to be allowed?*

4) *What Order?*

7. The petitioners have produced documents as per Exs.P1 to 8. Ex.P1 is the reference petition and amended reference petition, Ex.P2 to 7 CC of sale deeds, Ex.P.8 is Taluka Map.

8. Though opportunity is given, the respondents have not led any evidence. However, they have produced the copies of the notice and award and the same are marked as Exs.R1 & 2 with consent.

9. My answer to the above points are as under:

- 1) In the affirmative;
- 2) In the affirmative;
- 3) Partly in the affirmative;
- 4) As per the final order,
for the following:

REASONS

10. **Point No.1:** The learned counsel for the respondents have stated in his objection that the Reference is not filed within time and the same is time barred. The suggestion in this regard was also put to

PW1. PW-1 has denied the suggestion and he has stated that they filed the Reference petition in time.

11. As per section 64(1) of the Act the aggrieved person must make the reference within 6 weeks from the date of the collector's award, if the person making it was present or Represented before the collector at the time when he made his award. In other cases within 6 weeks from the date of service of notice under section 21, or within 6 months from the date of the collector's award which period shall 1st expire. In the case on hand the award was passed on 18.03.2016, the notice was served on 27.07.2016 and the Reference Petition was filed on 17.08.2016. The reference petition is filed within 6 weeks from the date of the collector's award. Hence, I hold that the Reference Petition filed by the petitioners are well within time as per Section 64(1) of the Act. In the result point No.1 is answered in the affirmative.

12. **Point Nos. 2 & 3:** Since both these points are interconnected with each other, for the sake of convenience, I would like to take these points together for common consideration. The petitioners

have claimed enhanced compensation at Rs.80,00,000/- per acre as against compensation of Rs.72,000/- per acre. The contention of the petitioners are that the respondents have not taken into account the sale deeds of the nearest village. The petitioners have further sought for redetermination of the amount of compensation.

13. As per Section 64 of the Act, it is incumbent upon this authority to consider whether the respondent has followed the parameters set-up under Section 26 to Section 30 of the Act. To determine the market value of the acquired land the respondent has taken into consideration the sale deeds registered for similar type of area in the village, during immediately preceding 3 years. Further, out of the available sale deeds the sale deeds in which the highest sale price has been mentioned are taken into consideration.

14. Since this authority has to redetermine the compensation, the redetermination of the compensation must also be done as per Section 26 of the Act. As per Section 26 (1)(a) the market value,

specified in the Indian Stamp Act, 1899, for registration of sale deeds or agreements sell, as the case may be, in the area, where the land is situated; or the average sale price of similar type of land situated in the in nearest village or nearest vicinity; or consented amount of compensation as agreed upon under (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher has to be considered.

15. The Collector has adopted the the criteria mentioned in section 26 (1) (b) of the act. Under such circumstances, this authority has to resort to adopt the same criteria mentioned in Clause-b.

16. During the course of arguments, the learned counsel for the petitioner has filed memo along-with copy of Judgment in LAC No.1690/2019, contending that this authority has already determined the compensation at Rs.20,650/- per gunta for dry land, situated at the same village and the land in LAC No.1690/2019 is acquired for the same purpose under same notification and common

award is passed. Hence prays to award same compensation to the petitioner herein. In the present case, the land is acquired for the purpose of construction of Chimmalagi Lift Irrigation Project. Similarly placed persons have filed Reference Petition for enhancement of compensation in LAC No.1690/2019. After considering the sale deeds of the similar type of lands, this authority has redetermined the market value of the acquired dry land at Rs.20,650/- per gunta.

17. At this juncture, I would like to refer the Judgment in **Ali Mohammad Beigh and Others Vs. State of Jammu and Kashmir reported in (2017) 4 SCC 717**. In this case, the Hon'ble Apex Court has held that, when the lands are more or less situated nearby and the acquired lands are identical and similar and the acquisition is for the same purpose, it would not be proper to discriminate between the land owner unless there are any strong reason. Further, the Hon'ble Court referred the earlier Judgment in **Union of India Vs. Bal Ram and Another reported in (2010) 5 SCC 747**. In this case, the Hon'ble Court

has held that "if the purpose of the acquisition is same and when the lands are identical and similar though lying in different villages, there is no justification to make any discrimination between the land owner to pay more to some of the land owner and less compensation to others.

18. In the present case also the acquired land is situated in the same village and it is acquired for the same purpose i.e., for construction of Chimmalagi Lift Irrigation Project. The land in LAC No.1690/2019 is dry land and the acquired land in the present case is also dry land. Therefore, in view of the principle laid down by the Hon'ble Apex Court in the aforementioned case, the same benefit which is given to other land owners has to be given to the petitioners herein.

19. The extent of acquired land in the present case is 10 guntas. The market value of the acquired land comes at Rs.2,06,500/- (Rs.20,650 x 10 = Rs.2,06,500/-). Thus, the market value of the acquired dry land in case on hand is redetermined at Rs.2,06,500/-.

20. The acquired land is situated in rural area. So, the market value needs to be multiplied by the Factor 2 as per First Schedule of the Act 2013. Further, the petitioners are entitled for 100% solatium as per Section 30(1) and Schedule-1 of the Act. Further, the petitioners are also entitled for additional market value at 12% per annum from the date of publication of the notification of the Social Impact Assessment Study till the date of the award of the Collector or the date of taking possession of the land, whichever is earlier under section 30(3) of the Act. In the case on hand neither party has produced the evidence to show the specific date of taking possession. Hence, the date of the award is considered. The petitioners are entitled for 12% additional market value i.e., from 31.01.2014 to 18.03.2016 U/Section 30(3) of the Act.

21. The total compensation of the acquired land in terms of section 26 to 30 and schedule 1 of the act, is computed as under.

Sl.No	Component of Compensation package in respect of land acquired	Amount (in Rs.)
01	Market value of the acquired land	2,06,500/-
02	Factor by which the market value is to be multiplied is 2	4,13,000/-
03	Solatium Equivalent to one hundred percent of the market value multiplied by the factor 2 plus value of assets attached to land or building.	4,13,000/-
04	Final award Market value of the acquired land multiplied by the factor 2 plus value of assets attached to land or building plus solatium.	8,26,000/-

22. The petitioners are entitled for total compensation of Rs.8,26,000/-.

23. Further, petitioners are also entitled for interest at 9% per annum for a period of one year, on excess compensation from the date of taking possession and thereafter 15% per annum till deposit of the amount under Section 72 of the Act. The petitioners have not produced any evidence to show the specific date of dispossession. Hence, the date of the collector's award is considered as date of dispossession. With these reasons, I hold that the compensation awarded by the 1st respondent is not fair and adequate and the petition deserves to be

allowed in part. Accordingly, point No.2 is answered in the affirmative and point No.3 is answered partly in the affirmative.

24. **Point No.4:** In view of reasons on point Nos.1 to 3, I pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 by the petitioners are hereby partly allowed with costs.

The petitioners in respect of the acquired land bearing Sy.No.84/1 measuring 10 guntas situated at Kawadimatti village are entitled for total compensation of Rs.8,26,000/-.

The petitioners are entitled for additional market value @ 12% per annum on market value Rs.2,06,500/- from the date of publication of the notification of the social impact Assessment study till the date of the award of the collector i.e from 31.01.2014 to 18.03.2016 as per section 30(3) of the Act.

Further, the petitioners are also entitled for interest at the rate of 9% per annum on

excess compensation U/S.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for a period of one year from the date of dispossession i.e from 18.03.2016 and thereafter, at the rate of 15% per annum for the subsequent period, till the date of deposit of enhanced compensation.

The amount, if any, already paid to the claimant, shall be deducted in the above said amount.

Award shall be drawn in the above terms.

(Dictated to the Judgment Writer directly on the Computer, script corrected and then pronounced by me in the Open Court on this the 29th day of February 2024)

SUBHASH
BASAVANNEPPA
SANKAD

Digitally signed by
SUBHASH
BASAVANNEPPA
SANKAD
Date: 2024.03.01
15:42:58 +0530

(SUBHASH SANKAD)

I Additional District Judge
& Land Acquisition, Rehabilitation &
Resettlement Authority,
Vijayapura.

ANNEXURE

List of Witnesses examined on behalf of claimant:

PW-1 Basappa S/o Sangappa Hokarni

List of Documents marked on behalf of claimant:

Ex.P:

- 1 : Reference petition and amended reference petition
2to7 : CC of sale deeds

8 Taluka Map

List of Witnesses examined on behalf of Respondents:

- NIL -

List of Documents marked on behalf of Respondents:

Ex.R-1 : Copy of Notice

Ex.R-2 : Copy of Award

I Additional District Judge
& Land Acquisition, Rehabilitation &
Resettlement Authority,
Vijayapura.

43

Annexure-B

ಅಡಿಕೆ-1



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ-1351620)

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,

ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ,

ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 07.03.2024

ಸುತ್ತೋಲೆ

ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರದ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿ / ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ ಮತ್ತು ಸಂಬಂಧಿಸಿದ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳನ್ನು ಪ್ರತೀವಾದಿಗಳನ್ನಾಗಿಸಿ ರಾಜ್ಯದಲ್ಲಿ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಪ್ರತಿದಿನ ಮೊಕದ್ದಮೆಗಳು, ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣಗಳು ಮತ್ತು ಇತರೆ ಪ್ರಕರಣಗಳಲ್ಲಿ ಜಪ್ತಿ ಆದೇಶಗಳನ್ನು ಹೊರಡಿಸಲಾಗುತ್ತಿದ್ದು, ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತೀವಾದಿಗಳನ್ನಾಗಿ ಮಾಡದೇ ಇರುವುದು ಸರ್ಕಾರದ ಗಮನಕ್ಕೆ ಬಂದಿರುತ್ತದೆ.

ಆದುದರಿಂದ, ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತೀವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅನುಚಿತ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ.

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ್)
ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ
(ಭೂಸ್ವಾಧೀನ ಹಾಗೂ ಪುನಿಷ್ಠಿ)
ಕಂದಾಯ ಇಲಾಖೆ.

ಇವರಿಗೆ:

1. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನಿರಾವರಣಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನಿರಾವರಣಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷ್ಣಾಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಬೆಂಗಳೂರು/ಮೈಸೂರು/ಕಲ್ಬುರ್ಗಿ/ಬೆಳಗಾವಿ ವಿಭಾಗ.
6. ಎಲ್ಲಾ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು / ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು (ಭೂಸ್ವಾಧೀನ) / ಅವರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು.
7. ಎಲ್ಲಾ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು.
8. ಎಲ್ಲಾ ಜಿಲ್ಲಾ ಸರ್ಕಾರಿ ವಕೀಲರು/ಅವರ ಸರ್ಕಾರಿ ವಕೀಲರು/ ಹೆಚ್ಚುವರಿ ಸರ್ಕಾರಿ ವಕೀಲರು.

**BEFORE THE HON'BLE HIGH COURT OF KARNATAKA
KALABURAGI BENCH**

PRESENTATION FORM

W.P.No. _____ /2025

Serial No. _____

VIJAYAPURA District

Advocate:

Between

Rakshith K S,
Bhavani Complex, 1st Floor,
New jewaragi Road,
Kalaburagi - 586201
Mob: 8618073619
Email ID: rakshithkslaw@gmail.com

**KRISHNA BHAGYA
JALA NIGAM LTD.**

AND

SLAO & ORS.

Sl. No.	Description of Papers Presented	Court Fee Affixed on the Paper
01.	On the Memo of petition	
02.	On the Memo of Appeal	
03.	On Vakalath	
04.	On Certified Copies	
05.	On I.A. No. _____ for _____	
06.	On Process Fee	
07.		
08.		
09.		
10.		

Number of Copies Furnished

Other Side Served

Presented by

Advocate for Petitioner/ Complainant
Appellant / Respondent

Received Paper

Place: KALABURAGI

Date:

IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

W. P. NO. _____ /2025

BETWEEN:

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER

AND

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS

INDEX

Sl. No.	Particulars	Pg No.
1.	I. A. for dispensation	46
2.	Memo of Facts	47-48

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

46

IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

W. P. NO. _____ /2025

BETWEEN:

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER

AND

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS

MEMORANDUM OF APPLICATION UNDER SEC.151 of C.P.C.

That for the reasons stated in the accompanying memo of facts, the Petitioner herein humbly prays that this Hon'ble court may be pleased to dispense the Petitioner herein from furnishing the certified copy of ANNEXURE- A in the interest of Justice & Equity.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

47

48

IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

W. P. NO. _____ /2025

BETWEEN:

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER

AND

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS

MEMO OF FACTS

The advocate for Petitioner humbly submits as follows:

1. The SLAO acquired lands of the Claimants for UKP project and handed over to the Petitioner Nigam who is the beneficiary.
2. Claimant dissatisfied with the award amount, challenged the same before the Reference Court without arraying the Petitioner Nigam as a necessary party and in the absence of the Reference Court exponentially enhanced the award amount and this was brought to the knowledge of the Petitioner Nigam recently.
3. The Petitioner Nigam has applied for certified copy of the impugned order at ANNEXURE-A and yet to be secured. The delay in securing the certified copies may lead to further delay in filing the present petition which may cause irreparable loss

48

to the Petitioner herein on the other hand no loss would be caused to the Respondents.

4. Thus I humbly request this Hon'ble Court for dispensation from furnishing the certified copies of ANNEXURE- A.

WHEREFORE, in view of the aforementioned facts and reasons cited the Petitioner humbly prays that this Hon'ble Court be pleased to allow the accompanying application in the best interest of justice.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**